

Irene Sosa v. City of Grover Beach, 26CV-0010

Hearing: **Demurrer**

Date: **September 2, 2026**

Irene Sosa filed this personal injury action in January 2026, against the City of Grover Beach and Allweather Landscape, Inc. Sosa filed a first amended complaint on April 23, 2026 (the FAC). The FAC alleges Plaintiff was walking through Grover Heights Park (the Park), a city-owned Park “when she stepped into an approximately 7-inch deep pothole or depression in the grass area near the picnic tables and concrete walkway.” The FAC alleges the pothole was obscured by grass.

In addition to filing an answer, the City responded by filing a cross-complaint for indemnity and contribution against Allweather. The cross-complaint alleges Allweather is responsible for Plaintiff’s injury pursuant to a “Request for Proposals [for] City Wide Landscape Maintenance” (the Proposal), which resulted in an agreement for landscaping services between the City and Allweather in November 2023 (the Agreement). Both the Proposal and Agreement are also attached as exhibits to the FAC.

On calendar is Allweather’s demurrer to Plaintiff’s FAC. Allweather argues the first and third causes of action fail to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10(e).) The Court overrules the demurrer.

A. Legal Standard

A demurrer challenges only the defects that appear on the face of the pleading under attack, or from matters outside the pleading which are subject to judicial notice. (Code Civ. Proc., § 430.30, subd. (a).) When reviewing a demurrer, a court must draw all reasonable inferences in favor of the plaintiff. (*Perez v. Golden Empire Transit Dist.* (2012) 209 Cal.App.4th 1228, 1239.) “The facts alleged in the pleading are deemed to be true, however improbable they may be.” (*Berg & Berg Enterprises, LLC v. Boyle* (2009) 178 Cal.App.4th 1020, 1034.) “To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged.” (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.)

B. Discussion

The first cause of action sets forth a claim for premises liability. The third cause of action sets forth a claim of general negligence. “The elements of a cause of action for premises liability are the same as those for negligence: duty, breach, causation, and damages. [Citation.]” (*Castellon v. U.S. Bancorp* (2013) 220 Cal.App.4th 994, 998.) Allweather argues the complaint fails to allege facts showing it owed a duty. Specifically, Allweather argues its duties were limited to cutting the grass at the park on a biweekly basis, and that it had no duty to inspect for, warn of, or report the alleged concealed subsurface ground depression.” (Dem., 7: 11-15.)

The FAC alleges Allweather “occupied, controlled, supervised, managed, maintained and inspected Grover Heights Park” and that Plaintiff’s injuries occurred in connection with landscape maintenance performed at the Park. (Cmpl., p. 7.) In support, the FAC attaches both the Proposal and subsequent Agreement between the City and Allweather. (Cmpl., Ex. 2.)

The Agreement’s “Scope of Services” includes “all work incidental to, or necessary to perform” the services outlined in the Proposal, even if not specifically described therein. (Cmpl., Ex. 2 [Art. 1].) The services outlined in the Proposal include “Turf Maintenance” and also required monthly inspection of “all landscape areas [] for pest, rodent, and disease problems. A written report with recommendations shall be submitted to the City.” (Cmpl., Ex. 2 [Proposal, pp. 3, 5].) The tasks outlined in connection with “Turf Maintenance” include generally mowing, trimming, edging, weed control, and fertilization.¹

Allweather argues the scope of landscaping services at each location included under the contract differs as evidenced by the fee schedule, and as such, the FAC fails to connect what specific work was performed at the Park. The Court finds this argument unpersuasive. The referenced fee schedule lists each park, the frequency of the services per month, and the monthly and annual cost of those services. As for the services provided, the fee schedule simply says, “Per scope provided.” (Cmpl., Ex. 2.) Presumably this is the “Scope of Services” in the Agreement as outlined by the Proposal and would apply to each park covered by the Agreement. Arguably the amounts differ based on the frequency of the services and the size of the park. Any dispute on these issues is a factual question. The FAC sufficiently alleges that Allweather was responsible for providing the services outlined by the Agreement and the Proposal at the Park.

Allweather next argues even if the proposal defines Allweather’s scope of duty, none of the outlined duties covers inspection for “subsurface geotechnical trip hazards.” (Dem., 9:7-9.) Plaintiff responds Allweather attempts to recast the allegations in the FAC which characterize the pothole as “obvious ... upon simple observation,” as instead a “concealed,” “subsurface,” “geotechnical” hazard; and recasting the landscaper hired to maintain the turf as a would-be “general premises-safety inspector.” Plaintiff argues because Allweather’s alleged duty turns on the scope of its services under the agreement, the Court cannot determine whether it owed a duty at the pleading stage. The Court agrees.

The Agreement’s “Scope of Services” includes “all work incidental to, or necessary to perform” the services outlined in the Proposal, even if not specifically described therein. (Cmpl., Ex. 2 [Art. 1].) Whether the Agreement between the City and Allweather included a duty to inspect for and/or warn of possible hazards in the turf is a question of fact that cannot be determined on demurrer. Whether such a duty falls under the “all work incidental to, or necessary to perform” language

¹ The Proposal also requires “[s]uch other items and details, not mentioned above, that are required by the plans, Standard Specifications or these Special Provisions shall be performed, placed, constructed or installed.” The terms “Standard Specifications” and “Special Provisions” are not defined in either the Agreement or Proposals.

cannot be interpreted based on the contractual language alone and is subject to extrinsic evidence to determine the mutual intention of the contracting parties.²

The demurrer for failure to allege a duty is overruled.

ORDER

The demurrer is overruled. Allweather is to file an answer within ten (10) days from service of the notice of ruling. (Code Civ. Proc., § 472b; Cal. Rules of Court, rule 3.1320(g).) Plaintiff is to serve the notice of ruling. (Code Civ. Proc., § 1019.5.)

The Court grants Plaintiff and Allweather's request for judicial notice of the FAC. The remainder of their requests for judicial notice are denied.

Allweather's request for judicial notice of the email correspondence between the City and BSAFE Playground Inspection Services, Inc. is irrelevant. (*Mangini v. R.J. Reynolds Tobacco Co.* (1994) 7 Cal.4th 1057, 1063 [only relevant material may be judicially noticed], overruled on other grounds by *In re Tobacco Cases II* (2007) 41 Cal.4th 1257, 1276.)

Plaintiff's request for judicial notice of Allweather's responses to the propounded requests for admission simply confirm the contractual language (which is already part of the FAC) and importantly the responses dispute Plaintiff's interpretation of that language or that the Agreement imposes any duty to inspect for the hazard at issue in the complaint. Finally, Plaintiff's opposition does not cite or discuss the other exhibits of which it asks the Court to take judicial notice. Those exhibits are therefore irrelevant.

² The fact that the City cross-complained against Allweather based on the Agreement and the services outlined in the Proposal raises an inference that the City is interpreting those written contracts differently than Allweather.